Board Minutes 2026-07-31 Waiver Lapse

Record

Administrative matters were considered.

The waiver lapsed on 2026-07-11.

The meeting then continued to other business.

Deliberation and Resolutions

For Board Minutes 2026-07-31 Waiver Lapse, the secretary recorded attendance, quorum, disclosed interests, materials reviewed, questions raised, advice received, and the alternatives considered before the vote.

Each resolution identifies the approved document or action, any condition or required consent, the officers authorized to implement it, and the limits of that authority.

The certification preserves the adoption method, abstentions, effective time, exhibits, and continuing record-keeping obligations.

1. Call to Order and Constitution of the Regular Meeting

The regular quarterly meeting of the Board of Directors of Helioscope Robotics, Inc. was held on July 31, 2026, beginning at 1:00 p.m. Pacific time, by video conference on a platform that allowed every participant to hear and speak to every other participant at the same time. No director asked to be treated as absent for any portion, and the connection did not drop during the session.

This meeting was held on the date fixed by the Board at the start of the year, so no separate notice was required and none was given. The agenda was circulated with the quarterly package eight days beforehand. The Chair called the meeting to order, confirmed that a quorum of the directors then in office was participating, and asked the Secretary to record the proceedings.

The Chair proposed taking the financing items before the operating report, on the ground that one financing item had a date consequence that the directors should consider while fresh. No director objected and the agenda was reordered accordingly.

Attachment 1 - Participation record for the regular July meeting

Participant	Seat or office	Joined	Departed	Voted on every item put
Renata Okonjo	Chair, Chief Executive Officer	1:00 p.m.	3:25 p.m.	Yes
Ingrid Solvang	Series A designee	1:00 p.m.	3:25 p.m.	Yes
Aurelio Banks	Independent director	1:02 p.m.	3:25 p.m.	Yes
Priya Nandakumar	Strategic designee	1:00 p.m.	3:05 p.m.	Yes, except final item
Dashiell Vance	Chief Technology Officer, director	1:00 p.m.	3:25 p.m.	Yes
Lucia Marchetti	Secretary of the meeting	1:00 p.m.	3:25 p.m.	Not a voting member
Chief Financial Officer	Reporting officer	1:00 p.m.	2:50 p.m.	Not a voting member

2. Consent Agenda and the Minutes of the Prior Meetings

The consent agenda comprised the minutes of the special meeting held in May, the minutes of a short telephonic meeting held in June, the quarterly bank resolutions, and the routine ratification of stock option grants made under the delegated authority. The Chair asked whether any director wished to remove an item from the consent agenda for separate discussion.

The Series A designee asked that the May minutes be taken separately, because she wished to confirm that the record of the seniority consent showed the term of that consent on its face rather than by reference to a checklist. The Secretary read the relevant part of the May record. The designee was satisfied and the item was returned to the consent agenda.

The consent agenda was then approved as a whole, without dissent and without abstention. The Secretary was directed to file the approved minutes and the supporting bank resolutions in the minute book and to make the option grant ratifications available to the equity administrator for entry.

3. Report of the Chief Financial Officer on the Financing Process

The Chief Financial Officer reported on the state of the Series B process: the term sheet executed at the end of July, the diligence requests then outstanding, the drafting schedule proposed by the two firms, and the items on the closing checklist that were not yet in hand. The report distinguished items within the Company's control from items that depend on a third party's act.

Among the second group, the officer reported that the seniority consent given by the holders of the existing senior class had been given for a limited term, that the term had run its course during the month, and that no further consent had been sought or obtained before it did. The officer said the closing checklist had been updated on the day the term ran and that counsel to both sides had been notified the same week.

The officer added that the lapse had been reported to the prospective lead's counsel in writing, that the prospective lead had acknowledged the notice, and that the lead had asked whether the Company intended to seek a renewal before the definitive documents were signed.

4. Recording the Lapse of the Seniority Consent

The Board recorded that the consent to the issuance of a senior series, approved in May and executed after the required class votes were obtained, expired at the end of the term stated in it. The date on which it expired is the date recorded in the lapse particulars set out in this record. The Board recorded that the expiry occurred by the terms of the instrument itself and not by any act of revocation.

The Secretary was directed to note the expiry in the minute book against the entry for the executed consent, so that a reader who finds the consent finds the expiry with it, and to keep the notice given to counsel with both entries. The Board declined to characterise the expiry as a default, a breach or a withdrawal by any holder, none of which it was.

The independent director asked that the record show, plainly, that the Company has no consent to issue a senior series as of the date of this meeting. The Chair agreed and the Secretary so recorded. Counsel was directed to treat the ranking of the new series as an open item in every draft until a further consent is obtained and delivered.

5. Directors' Questions on the Consequences of the Expiry

The Chief Technology Officer asked whether the expiry stops the drafting. The Chief Financial Officer answered that drafting continues, because the ranking provision sits in the charter amendment rather than in the purchase agreement, and that the amendment cannot be filed without the consent whether or not the agreements are signed.

The independent director asked what the Company would say if asked whether the accommodation had been obtained. The Chair answered that the Company would say the accommodation had been obtained and had since expired by its own terms, and that no officer would describe the position in any other way. Counsel confirmed that this is the accurate description.

The strategic designee asked whether the expiry changes the treatment of the outstanding convertible instruments. The Chief Financial Officer answered that it does not: those instruments convert on the terms of their own documents, and the ranking of the new series affects the order of payment on a liquidation rather than the mechanics of conversion.

Attachment 2 - Closing-condition items reviewed after the expiry

Condition	Position before the expiry	Position recorded at this meeting	Document to be updated	Adviser responsible
Ranking of the new series	Consented for a limited term	No consent in force	Charter amendment	Whitmore & Lang LLP
Class votes for the amendment	Obtained for the consent given	To be sought again if renewed	Solicitation package	Whitmore & Lang LLP
Closing checklist entry	Open with an expiry date	Open with the expiry recorded	Closing checklist	Deverell Roth LLP
Disclosure of the accommodation	Described as obtained	Described as obtained and expired	Disclosure schedule	Whitmore & Lang LLP

Condition	Position before the expiry	Position recorded at this meeting	Document to be updated	Adviser responsible
Convertible instrument treatment	Unaffected	Unaffected	None	Chief Financial Officer
Board reporting obligation	Report at each meeting	Satisfied at this meeting	Minute book	Secretary

6. Alternatives Weighed Before Deciding Not to Seek an Immediate Renewal

The Board weighed seeking a renewal at once. The Series A designee said the holders she had spoken to would want to know the final ranking, the final preference and the final governance package before consenting again, and that a request made before the drafts settled would probably be refused and would be harder to make a second time.

The Board weighed asking the prospective lead to accept parity instead. The Chair said the lead's investment committee had approved a senior structure and that a change of structure would take the financing back to committee, with a delay the Company's cash position does not comfortably absorb.

The Board decided to seek a renewal when the definitive documents are close enough to final that the consenting holders can see what they are consenting to, and to make the renewal a condition to closing rather than an assumption behind it. No resolution was adopted on this item; the Board recorded the decision as a direction to the officers.

7. Operating Report and Other Business

Management then gave the quarterly operating report: installed base and deployment progress, the state of the two field programmes that had slipped in the prior quarter, hiring against the plan approved in January, and the cash position against the forecast. The Board asked for a written follow-up on the slipped programmes before the next meeting.

The Chair reported on a customer visit and on a partnership discussion that had not yet produced a term sheet. No approval was sought and none was given. The Board asked that any partnership involving exclusivity be brought to it before terms are exchanged rather than after.

No director proposed any other business. The Board confirmed the date of the next regular meeting as previously fixed and confirmed that the annual meeting of stockholders would be scheduled once the financing position was clearer.

8. The Data Room and the Information Given to Prospective Investors

The Chief Financial Officer reported on the state of the data room: the folders opened since the last meeting, the documents added to each, the persons to whom access had been given, and the requests that had been answered outside the room by letter from counsel. The officer confirmed that every person with access had signed a confidentiality undertaking before access was granted.

The Board asked how the room distinguishes an executed document from a draft of the same document. The officer answered that executed instruments sit in their own folder, that drafts and redlines are kept in a separate folder marked as negotiating history, and that the index names the executed version for each document so that a reader is not left to guess from a file name.

The independent director asked that the room also carry a note wherever a document exists in more than one copy, so that a reader who finds two copies knows which one the Company treats as the record. The officer accepted the point and undertook to add such notes before the next tranche of diligence requests was answered.

9. Executive Session Held Without Management Present

The non-management directors met without the officers present. The Chair, being an officer, withdrew for this portion and the independent director presided. The Secretary withdrew and the presiding director kept a short note of the session, which is held separately from this record and is available to any director on request.

On the resumption of the general session the presiding director reported that the non-management directors had discussed the officers' performance against the plan and the adequacy of the finance function for a financing of the size contemplated, and had agreed to bring a specific proposal on the second point to the next meeting rather than at this one.

10. Action Items Assigned and Adjournment

The Secretary read back the action items assigned during the meeting, with the officer or adviser responsible for each and the meeting by which each is to be reported. The Board confirmed the list as read. The Secretary was directed to circulate it within two business days and to carry any incomplete item into the agenda of the next regular meeting. (8 Del. C. § 220)

There being no further business, the meeting was adjourned at 3:25 p.m. Pacific time. The undersigned, acting as Secretary of the meeting, certifies that this record is a true record of the proceedings of the meeting, that the attachments referred to are the documents considered, and that no resolution recorded here has since been amended or revoked.

Attachment 3 - Action items assigned at the regular July meeting

Item	Action required	Assigned to	Report by	Standing or one-off
A-1	Update the disclosure schedule to show the expiry	Whitmore & Lang LLP	Next drafting turn	One-off
A-2	Keep the expiry notice with the executed consent	Secretary	Immediately	One-off
A-3	Prepare a renewal solicitation package for review	Whitmore & Lang LLP	Next regular meeting	One-off
A-4	Report the ranking item as open in every draft	Deverell Roth LLP	Continuing	Standing
A-5	Written follow-up on the two slipped field programmes	Chief Operating Officer	Next regular meeting	One-off
A-6	Report the financing calendar at each meeting	Chief Financial Officer	Each meeting	Standing

9. Record of the Documents Amended After the Meeting

The Secretary recorded, for completeness, the documents that were to be amended as a consequence of the matters minuted above: the closing checklist, the disclosure schedule, the financing calendar and the minute book entry for the executed consent. Each amendment was to be made by the adviser identified in Attachment 3 and confirmed to the Secretary in writing.

The Secretary further recorded that no amendment was to be made to the executed consent itself, that instrument having expired according to its own terms, and that any renewal is to take the form of a new instrument rather than an amendment of the expired one.

The Chair asked that the amended documents be circulated to the directors when they were settled, rather than held for the next meeting, so that no director is asked to approve a later draft without having seen how the earlier one was corrected. The Secretary undertook to circulate them with a short covering note identifying each change and the reason for it.

The independent director asked whether the Company had any obligation to notify a third party of the expiry beyond the notices already given. Counsel advised that it had none, and that the Company should nonetheless answer any diligence question on the subject by giving the position as recorded in these minutes rather than by summarising it.